

6	Gary, M.D., vs. Intefusion, LLC 2025-01507916	1. Demurrer to Complaint 2. Motion to Strike Portions of Complaint 3. Case Management Conference Demurrer Defendants InteFusion, LLC; Julie Bolter; and Brad Bolter’s Demur to the Complaint. <i>3rd and 4th Causes of Action – Intentional and Negligent Misrepresentation</i> “ ‘The elements of fraud, which give rise to the tort action for deceit, are (a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or ‘scienter’); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage.’ ” (Lazar v. Superior Court (1996) 12 Cal.4th 631, 638.) “In California, fraud must be pled specifically; general and conclusory allegations do not suffice. Thus, the policy of liberal construction of the pleadings will not ordinarily be invoked to sustain a pleading defective in any material respect. This particularity requirement necessitates pleading facts which show how, when, where, to whom, and by what means the representations were tendered.” (Lazar, supra, 12 Cal.4th 631, 645 (cleaned up).) Plaintiffs have alleged the intentional and negligent misrepresentations claims with sufficient specificity. Plaintiffs allege: “In or about May 2017, Julie, on behalf of herself as an individual and on behalf of InteFusion, knowingly misrepresented to Plaintiffs that they were billing experts in Medicare, TRICARE, and other insurance providers, especially for billing integrative medical services and infusion claims. Julie told Plaintiffs that she and InteFusion could properly bill the services provided by JJGMD in a more efficient and effective way and estimated that it could increase Plaintiffs’ billing revenue by approximately 15%.” (Compl., ¶ 35.) Additionally, Defendants’ representation about Defendants’ expertise in billing services is an existing fact and not future conduct.
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	Tentative Ruling: Defendants’ demurrer to the 3rd and 4th causes of action is overruled. <i>6th Cause of Action – Unfair Competition</i> “The scope of section 17200 is broad, encompassing anything that can properly be called a business practice and that at the same time is forbidden by law.” (Linear Technology Corp. v. Applied Materials, Inc. (2007) 152 Cal.App.4th 115, 133 (cleaned up).) “As a result, to state a claim under the [UCL] one need not plead and prove the elements of a tort. Instead, one need only show that ‘members of the public are likely to be deceived.’” (Ibid.) “Actions under the UCL are not meant to be substitutes for tort or contract actions. [Citation.] ‘Instead, the act provides an equitable means through which both public prosecutors and private individuals can bring suit to prevent unfair business practices and restore money or property to victims of these practices.’” (Marsh v. Anesthesia Services Medical Group, Inc. (2011) 200 Cal.App.4th 480, 502.) Plaintiffs have failed to allege members of the public would be deceived. Tentative Ruling: Defendants’ demurrer to the 6th cause of action is sustained with 10 days leave to amend. (See City of Stockton v. Superior Court (2007) 42 Cal.4th 730, 747.) Motion to Strike Defendants InteFusion, LLC; Julie Bolter; and Brad Bolter’s move to Strike Portions of the Complaint. Defendants seek to strike the 3rd, 4th, and 6th causes of action and numerous paragraphs of the Complaint on the grounds Plaintiffs have failed to adequately allege facts to support a claim for punitive damages. “In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant.” (Civil Code, section 3294(a).) “In order to survive a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled by a plaintiff.” (Clauson v.
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		Superior Court (1998) 67 Cal.App.4th 1253, 1255.) Additionally, “[i]n passing on the correctness of a ruling on a motion to strike, judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth.” (Ibid.) As discussed in this Court’s ruling on Defendants’ demurrer, Plaintiffs have adequately alleged its fraud claims. Thus, Plaintiff has adequately alleged a basis under Section 3294(a) to claim punitive damages. Tentative Ruling: Defendants InteFusion, LLC; Julie Bolter; and Brad Bolter’s Motion to Strike Portions of the Complaint is DENIED. Defendants to give notice.
7	Gomez vs. BGN Acquisitions La Habra Hills 2026-01539087	1. Motion to Strike - Anti SLAPP 2. Motion to Strike - Anti SLAPP Motion 1: Anti-SLAPP by Kimball, Tirey & St. John, LLP (ROA 16) Defendant Kimball, Tirey & St. John, LLP’s (“KTS”) Special Motion to Strike the Complaint under the Anti-SLAPP Statute Each parties’ respective request for judicial notice is GRANTED. (Evid. Code, §452, subd. (d).) <u><i>Legal Standard</i></u> A special motion to strike is authorized against SLAPP suits (Strategic Litigation Against Public Participation), i.e., lawsuits brought “primarily to chill the valid exercise of constitutional rights of freedom of speech and petition for the redress of grievances.” (Code Civ. Proc., § 425.16, subd. (a).) An anti-SLAPP motion may be used to strike allegations of protected activity, even if the motion does not defeat the entire cause of action. (Baral v. Schnitt (2016) 1 Cal.5th 375, 385-390; disapproving Mann v. Quality Old Time Service, Inc. (2004) 120 Cal.App.4th 90 and its progeny). The anti-SLAPP statute is to be construed broadly. (Code Civ. Proc., § 425.16, subd. (a).) To prevail on the motion, the plaintiff’s claim must (1) arise out of the defendant’s protected speech or petitioning; and (2) lack even minimal merit. (Navellier v. Sletten (2002) 29 Cal.4th 82, 88-89.) Thus, in ruling on an anti-SLAPP motion, courts engages in a two-step process: “First, the defendant must establish that the